

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

March 5, 2020

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:00p.m. in City Council Chambers for the purpose of collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR - Marian J. Orr; COUNCIL MEMBERS – Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dicky Shanor, and Jeff White. Absent: Rocky Case and Dr. Mark Rinne and Scott Roybal. Also present: Kris Jones, City Clerk; Michael O'Donnell, City Attorney; Alessandra McCoy-Fakelman, Deputy City Attorney, Robin Lockman, City Treasurer, and Chief Greg Hoggatt, Fire and Rescue Department. The pledge of allegiance was recited.

Mayor Orr requested those who may be speaking to use the microphones so that their comments can be heard. Mayor Orr advised the meeting would be audio recorded and available on Facebook live and stated that Wyoming State Statute §16-4-405(a)(x) of the Public Meetings Act allows the governing body to meet in executive session to consider or tender offers regarding salaries, wages or other terms and conditions of employment during negotiations with the fire fighters union and that any motion approved by the governing body to move into executive session during the special meetings would be pursuant to this section of statute. Mayor Orr further advised if the governing body met in executive session, they would be meeting in the Mayor's Conference Room, and that Fire Union representatives were welcome to use Committee Room 104 for the purpose of meeting to caucus.

Michael O'Donnell, City Attorney, advised the City would be presenting a counteroffer following an executive session by the Governing Body.

Pursuant to Wyoming State Statute §16-4-405(a)(x), Mr. Luna moved to meet in executive session, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body present. Mayor Orr identified, in addition to members of the governing body present, the City Clerk, City Attorney, Deputy City Attorney, City Treasurer, and Chief of the Fire and Rescue Department would also be present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive session convened at 6:07 p.m. in the Mayor's Conference Room]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 7:03 p.m.

Kevin West, Union Representative, advised Sections #12-Union Representation and #34-Union Dues, have been closed and require signatures by both parties.

Michael O'Donnell, City Attorney, presented the Union representatives with the City's counteroffer and provided a brief summary on each section. The following Sections contained a

revised offer from the City: 3-Exclusive Bargaining Agent, 8-Grievance Procedures, 18-Trading Shifts, 22-Overtime, 25-Conversion of Benefit Hours, 33-Personal Protective Equipment-City accepts Union offer, and 37-Time Off for Union Business. Mr. O'Donnell advised the remaining open sections are re-offered as originally offered by the City: Sections 2-Definitions, 13-Management Rights, 15-Department Staffing, 17-Hours of Work, 19-Inclement Weather Conditions, 20-Holidays, 23-Working in a Higher Job Rank, 24-Specialized Emergency Response Teams, 26-Wellness/Fitness Program, 28-Sick Leave and 41-Prevailing Rights.

Mayor Orr clarified that although the City supports the concept of forming a "Squad" with personnel for the Fire Department, the City is not including it in the contract at this time. Upon inquiry from Mr. O'Donnell, Mr. West confirmed Sections 46-Military Leave, 47-Tuition Reimbursement and 48-Parental Leave were previously closed.

Pursuant to Wyoming State Statute §16-4-405(a)(x), Mr. Luna moved to meet in executive session, seconded by Mr. Cook. Motion carried. Voting "yes" – all members of the governing body present. Mayor Orr identified, in addition to members of the governing body present, the City Clerk, City Attorney, Deputy City Attorney, City Treasurer, and Chief of the Fire and Rescue Department would also be present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive Session convened at 7:18 p.m. in the Mayor's Conference Room] [Additional Clerk note: The purpose of the executive session was to allow Union representatives the opportunity to caucus to review the City's offer]

Mr. Laybourn excused himself for the remainder of the meeting due to a previous commitment during executive session at 7:45 p.m.

Following a request from Union representatives at 7:51 p.m., Mr. White moved to extend the time for the executive session, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body present.

Following closure of the executive session, Mayor Orr reconvened the special meeting at 8:19 p.m.

Mr. West provided a brief explanation of the Union's counteroffer with changes to the following Sections: 13-Management Rights, 15-Department Staffing, 20-Holidays, 21-Classification of Employment and Basic Wages, 22-Overtime, 23-Working in a Higher Job Rank, 24-Specialized Emergency Response Teams, 25-Conversion of Benefit Hours, (23, 24, and 25-Union accepts City's offer) 26-Wellness/Fitness Program, 37-Time off for Union Business and 41-Prevailing Rights. Mr. West advised remaining open sections are re-offered as originally offered.

Mr. O'Donnell, upon inquiry from Mr. West, advised closed sections will be signed off at the beginning of the next scheduled meeting on March 10, 2020 beginning at 6:00 PM in Council Chambers, 2101 O'Neil Ave.

Mayor Orr stated the purpose of the special meeting had been met. Mr. Luna moved to adjourn at 8:35 p.m., seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
March 11, 2020